

Disposition

Defendant's Motion is denied.

Court will issue Order.

4. 9:00 AM CASE NUMBER: L24-08703

CASE NAME: SYNCHRONY BANK VS. LUIS MUNGUIA

**MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT
AND RELEASE AGREEMENT**

FILED BY: SYNCHRONY BANK

***TENTATIVE RULING**

Plaintiff filed a Motion to enter judgment pursuant to stipulation. The Motion was originally scheduled for 6/23/26, but the court continued the matter to 8/25/26.

While the court sent notice to Plaintiff about the 8/25/26, the court did not provide notice of this change to Defendant because Defendant has not filed any pleadings with the court.

It does not appear Plaintiff provided notice to Defendant of the new date, either.

Disposition

This matter will be continued to 12/8/26, 9am.

Plaintiff to provide notice of new date to Defendant.

5. 9:00 AM CASE NUMBER: L24-09288

**CASE NAME: CORE EQUIPMENT LEASING, LLC VS. MOUNTAIN MOVERS EXCAVATION, INC.,
TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT**

FILED BY: MOUNTAIN MOVERS EXCAVATION, INC.,

***TENTATIVE RULING**

In this matter, Defendant filed, on 3/12/26, a Motion to set aside default and default judgment.

The Motion is unopposed, but there is no indication that Defendant ever provided notice of the Motion to Plaintiff.

Disposition

This Motion will be continued to 12/8/26, 9am.

Defendant to provide a copy of the Motion to Plaintiff, and to provide notice of the next hearing.

**6. 9:00 AM CASE NUMBER: L25-03786
CASE NAME: WELLS FARGO BANK, N.A. VS. KEVIN ROA**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Wells Fargo v. Bryan Manuel

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration of William Haas, a Separate Statement of Undisputed Material Facts and Plaintiff’s Exhibits A through C. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on the address provided in Defendant’s Answer.

Background

The Complaint alleges a breach of contract cause of action stemming from a credit card agreement. Plaintiff alleges Defendant stopped making payments on debt he owed, an action that violated the terms of the cardholder agreement.

The final balance of Defendant’s account is alleged to be \$10,277.97.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity